

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

SERGIO TORRES,

Respondent

) Case Number: FCS-18-353130

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Respondent Sergio Torres (Father) and Other Parent Marjorie Nishimata (Mother). The minor child subject to this proceeding is Akira (DOB: May 18, 2018).
- 2) On January 28, 2025, Judge Roeca signed a Findings and Order After Hearing (FOAH) that: (a) reaffirmed joint legal and joint physical custody of the child (see FOAH filed January 10, 2023); and (b) reaffirmed Mother's weekly parenting time from Friday at 6 pm to Sunday at 6 pm (see FOAH filed August 4, 2023). The court also reaffirmed that the child would attend school in Napa with exchanges at the Berkeley Police Department.
- 3) On June 17, 2025, Mother filed an ex parte Request for Order to Change Visitation (Parenting Time) requesting two additional days with the child and that the child begin autism therapy via Zoom.
- 4) The Request for Order to Change Visitation was set on August 18, 2025, and then continued three times (to September 29, 2025, then to November 10, 2025, then to January 13, 2026).

- 5) On October 27, 2025, Mother filed a declaration stating that the paternal grandparents, Noelia Rivera and Jose Torres, harass her during the exchanges and requesting “for one or two days more with my son.”
- 6) On December 17, 2025, Father filed a Responsive Declaration requesting that either the paternal grandfather or paternal grandmother or the paternal uncle, Christian Torres, be allowed to conduct the custody exchanges and that the paternal uncle be allowed to drop off and pick up the child from school. Father further requests that Mother show proof of a valid driver’s license and provide employment information and the address where she resides. Father also requests that Mother not to disturb the child during his swimming lessons.
- 7) On December 17, 2025, the paternal grandmother, Noelia Rivera, filed a declaration denying that she follows, harasses, or threaten Mother or the child (her grandson) during custody exchanges.
- 8) On December 31, 2025, Mother filed a Request to Reschedule seeking a hearing date after February 6, 2026. Mother’s Request to Reschedule was denied on January 8, 2026.
- 9) On January 5, 2026, both parties attended mediation, but they did not reach an agreement.
- 10) On January 13, 2026, the Court adopted its tentative ruling. Within its tentative ruling (which is now an order of the Court) the Court ordered: “All other outstanding issues are continued to June 4, 2026 at 9:00 a.m., in Dept. 403. At least 10 days in advance of the hearing date, both parties may file and serve updated declarations.”
- 11) On May 19, 2026, Father filed a declaration, which has been read and considered by the Court.
- 12) On May 28, 2026, Father filed an additional declaration in which he raised additional concerns including that Mother was still driving the children without a valid California Driver’s License.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court admonishes Mother that she is not to transport the minor child, unless and until she has a valid California Driver’s License. If Father presents evidence that Mother continues to transport the child, while not possessing a valid California Driver’s License, the Court will view

1 Mother's conduct as not in the child's best interests and consider terminating Mother's parenting
2 time.

3 3) The Court declines to make any further modifications to the existing custody and visitation
4 orders. All existing orders, not in conflict with the orders made herein, shall remain in full force
5 and effect.

6 4) The Court will prepare the Findings and Order After Hearing.
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